

Vopak South Africa Development (Pty) Ltd
(Company Registration Number: 2008/019455/07)

Amendment No. 1

As approved by the National Energy Regulator of South Africa on 6 August 2025

Effective date of amendment: **6 August 2025**

Amendments

1. The overall site layout of the storage facility within **Annexure A** is deleted and replaced with a new **Annexure A** attached hereto.
2. The **Table 1** in **Annexure B** is deleted and replaced with a new **Table 1** attached hereto.

Signed at **PRETORIA** on the **22nd** day of **August 2025**.

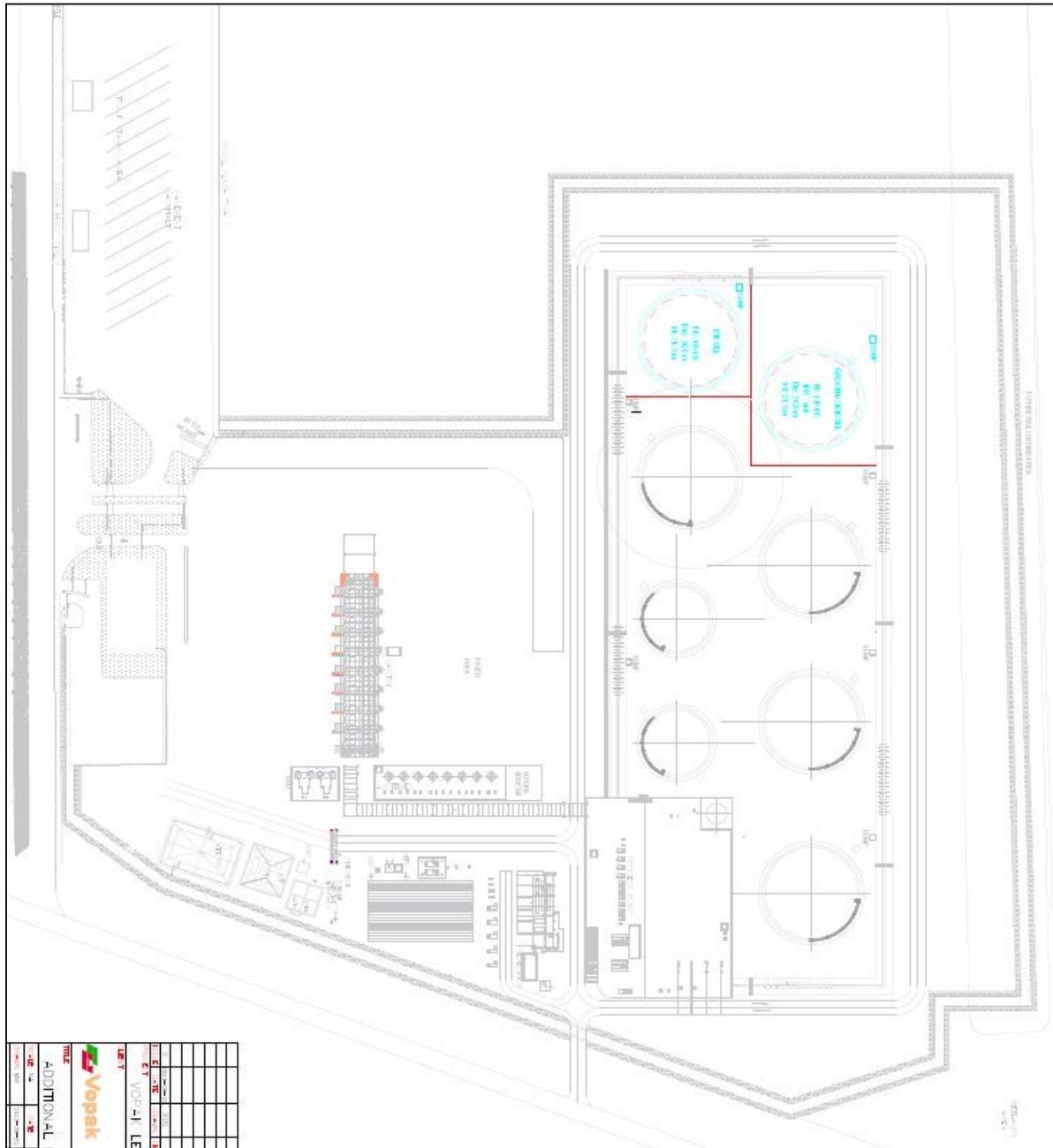
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Adv. Nomalanga Sithole

Chief Executive Officer

National Energy Regulator of South Africa

Annexure A: Site Layout



Annexure B: Facility Details Table 1:

Tank Details

Tank No	Tank Type	Design capacity (m ³) [Nominal]	Operational capacity (m ³)	Product
TK-001	Conical roof	20 000		Petrol
TK-002	Conical roof	10 000		Petrol
TK-003	Conical roof	20 000		Diesel
TK-004	Conical roof	10 000		Petrol
TK-005	Conical roof	20 000		Diesel
TK-006	Conical roof	20 000		Diesel
TK-008*	Internal Floating roof	20 000		Diesel/Petrol
TK-009*	Conical roof	20 000		Diesel
TOTAL		140 000		

NATIONAL ENERGY REGULATOR OF SOUTH AFRICA

In the matter regarding

**AN AMENDMENT APPLICATION TO THE CONDITIONS OF A COMBINED LICENCE ISSUED
FOR THE OPERATION OF PETROLEUM PIPELINES AND A PETROLEUM STORAGE FACILITY
IN JAMESON PARK, GAUTENG PROVINCE**

By

VOPAK SOUTH AFRICA DEVELOPMENTS (PTY) LTD

Licence Number

PPL.sf.p.F3/334/2020

THE DECISION

- 1 On **06 August 2025**, the National Energy Regulator of South Africa approved the first amendment of the conditions of a licence issued to Vopak South Africa Developments (Pty) Ltd for the operation of petroleum pipelines and a petroleum storage facility in Jameson Park, Gauteng Province.
- 2 The amendments to the licence conditions are summarised below.
 - a) The tank details in the licence condition 1.2 are amended by including two additional tanks, each with a design capacity of 20 000m³ for the storage of diesel; and
 - b) A new site layout is added, showing the above-mentioned two proposed tanks.
- 3 The addendum to the operation licence conditions (PPL.sf.p.F3/334/2020/AM1) is attached hereto as **Annexure 1**.

Signed in **PRETORIA** on the **22nd** day of **August 2025**

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Adv. Nomalanga Sithole

Chief Executive Officer

National Energy Regulator of South Africa

REASONS FOR DECISION

BACKGROUND

1. On 20 August 2010, the National Energy Regulator of South Africa (NERSA or 'the Energy Regulator') issued a combined licence to Vopak South Africa Developments (Pty) Ltd ('Vopak' or 'the licensee') for the construction of petroleum pipelines and a petroleum storage facility in Jameson Park, Gauteng Province (Licence No. PPL.sf.F1/89/2009).
2. The Vopak storage facility in Jameson Park is connected to the Vopak Terminal Durban (Pty) Ltd⁴ ('Vopak Terminal') petroleum facilities in Island View, KwaZulu-Natal Province, via the Transnet SOC Ltd ('Transnet') petroleum pipeline system.
3. On 30 May 2018, 26 August 2020, and again on 04 September 2024, the Energy Regulator approved the first, second and third amendments of the conditions of the combined licence issued to Vopak for the construction of petroleum pipelines and a petroleum storage facility in Jameson Park, Gauteng Province. The amendments were approved as applied by Vopak. The details of the amendments are provided in the section below and more details can be found in the Energy Regulator Reasons for Decision documents for the first, second and third amendments.

Table 1: Previous Approved Vopak SA Construction Licence Amendments

Amendment	Details
Amendment 1 approved 30 May 2018	• Phase 2 of construction project removed; • The project schedule (activities) was updated; and • Phase 1 construction updated to be ready for operation by 30 September 2019.
Amendment 2 approved 26 August 2020	• The project schedule was updated again; • Removal of 1 tank and change of product allocation of tanks; and • Phase 1 construction updated to be ready for operation by 30 September 2020.
Amendment 3 approved 04 September 2024	• Proposal to construct two additional tanks, each with a capacity of 20 000m³ (total capacity 40 000m³) for the storage of diesel. • Project planned to be completed by 30 October 2025.

4. The above issued construction licence was followed by an operation licence (PPL.sf.p.F3/334/2020) which was approved by the Energy Regulator on 26 August 2020 for the operation of a storage facility with a combined design capacity of 100 000m³ and four pipelines connecting the storage facility to the Transnet SOC Ltd pipeline system in Jameson Park. The Vopak facility in Jameson Park became operational in December 2020.

THE APPLICATION

5. On 5 March 2025, Vopak applied to NERSA for the first amendment of the conditions of the combined licence issued for the operation of facilities in Jameson Park. The Vopak application was considered as a complete application on 8 April 2025.

THE APPLICANT

6. The application is made by the licensee in terms of section 23(1)(a) of the Petroleum Pipelines Act, 2003 (Act No. 60 of 2003) ('the Act'). The licensee is Vopak, a private company registered in terms of the company laws of South Africa, with company registration number 2008/019455/07. According to the latest Broad Based Black Economic Empowerment (B-BBEE) certificate valid until 13 April 2026, Vopak is a Level 1 contributor with a [REDACTED] Black ownership and [REDACTED] Black Women ownership within its ownership structures.

DETAILS OF THE APPLICATION

The amendment sought

7. Vopak seeks to amend its licence conditions with the addition of two (2) storage tanks with a design capacity of 20 000m³ each into the licence conditions. This change will affect the overall storage capacity resulting in an additional 40 000m³ and an overall total storage capacity from 100 000m³ to 140 000m³. As stated in earlier sections, the construction of these tanks was approved by NERSA on 4 September 2024 and Vopak has progressed within the stipulated construction timelines.
8. The entire additional capacity of 40 000m³ will be for the storage of diesel. However, one tank will have an internal floating roof to have the flexibility to change products (to petrol/ULP), and therefore this tank will connect to both the diesel and ULP manifold.
9. The facility currently operates six tanks; three diesel tanks and three ULP95 tanks, with product intake from the Transnet pipeline system. Therefore, the same standards of

operation will be applicable for both the new tanks. Vopak does not anticipate any foreseeable changes required in terms of the eight existing road loading bays for product dispatch despite the increase in storage capacity.

Project Plan Schedule

10. According to the approved Vopak project schedule, mechanical works are due to be completed on 10 December 2025, with commercial operations commencement on 7 January 2026. However, as per the current project status, the project is ahead of schedule and commissioning of the tanks will commence on [REDACTED] and commercial operations on the tanks is scheduled to begin on [REDACTED].

Capex Estimate

11. At the time of construction licence, the two tanks were anticipated to be [REDACTED], with a [REDACTED] accuracy level. This overall cost included a [REDACTED] contingency. Final costs of the project will be shared with the Energy Regulator upon completion as per the construction licence conditions.

APPLICABLE LAW

12. The legal mandate for the Energy Regulator to amend the conditions of a licence it has issued is derived from the National Energy Regulator Act, 2004 (Act No. 40 of 2004) read with the Act.

DECISION-MAKING PROCESS

Confidential treatment of information

13. In accordance with Rule 4 of the Petroleum Pipelines Act Rules, 2019⁷, Vopak submitted a request to treat certain information in its amendment application as confidential. On 29 April 2024, NERSA considered the request and decided to treat the following information in the application as confidential:
 - a) Personal identity number of the mandated representative;
 - b) Cell phone number of the mandated representatives;
 - c) Project plan schedule; and
 - d) Project Progress Report.

Public consultation

14. On 3 June 2025, NERSA published notices in the *Business Day* and the *Beeld* newspapers respectively, inviting members of the public to submit written comments on the Vopak amendment application. The closing date for the submission of written comments was 18 July 2025. There were no comments and/or objections received until the closing date of 18 July 2025. Therefore, a public hearing on the application did not take place.

ISSUES FOR CONSIDERATION

15. The following issues have been identified as the key issues for consideration in this application:
- a) Compliance with Construction Licence Conditions; and
 - b) Capacity Need Assessment.

A. Compliance with Construction Licence Conditions

16. The Vopak construction project commenced on [REDACTED] and in its first six-monthly report submitted on 20 February 2025 for the period 1 September 2024 to 28 February 2025, confirmed that the project had progressed well within the first 6 months and is ahead of schedule by [REDACTED] %.
17. The Energy Regulator visited this facility on 15 July 2025 to verify the status of the project. On site, it was confirmed that Vopak was indeed ahead of its planned schedule, with the possibility of commercial operations starting 2 months ahead of the previously planned period. Furthermore, the project cost is also anticipated to be less than the planned cost, which is a positive indicator.
18. As part of the construction licence conditions (CoL), section 12.5 of the CoL requires the licensee to provide NERSA with as-built maps identifying any deviations and reasons thereof, including the final costs of construction and a certificate from a competent authority confirming that the tanks are fit for operation upon completion of construction.
19. These stipulated CoL are yet to be met on completion of the commissioning activities; however, based on Vopak's track record on previous construction activities, the Energy Regulator is assured that these will be met upon completion. Within the Reasons for

Decision (RfD) document of the amendment to the construction licence, the Energy Regulator did highlight to Vopak that they may be a need for a more comprehensive prudency assessment upon completion of this project.

B. Capacity Need Assessment

20. During the analysis of the amendment of the licence conditions issued for the construction licence for the addition of these tanks, the RfD document⁸ analysed the following key aspects:
- a) Vopak's motivation for the addition of the proposed capacity;
 - b) Impact of the amendment on the storage market; and
 - c) Vopak's throughput from 2021/22 to 2023/24.
21. In its analysis, NERSA found sufficient evidence that there was indeed a significant increase in the overall throughput of volumes within the Vopak Jameson Park facility as alluded to by Vopak in its motivation for the rationale of the additional capacity. It was found that the year-on-year increase for diesel had doubled, warranting an increase for additional capacity.
22. In addition, Vopak had submitted that various customers had indicated interest in capacity at its Durban facilities in combination with the upcoming capacity in Jameson Park. As part of the current application, Vopak was requested to re-confirm the commitment of the capacity uptake. Vopak indicated that the following customers had entered long-term contracts to support this expansion:
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-
-
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23. The Energy Regulator can confirm that apart from [REDACTED], all the other customers are shippers of petroleum product through the Transnet pipeline system from Durban to Jameson Park as recorded in the 2024/25 reporting period. Therefore, the additional capacity will assist with volume throughput via the facility.
24. In terms of potential adverse impact of this additional capacity, NERSA found

no evidence suggesting that other players operating within the same vicinity and further with the Gauteng Province would be adversely affected, but that this capacity is in fact in line with section 2(b) of the Act to “*promote the efficient, effective, sustainable and orderly development, operation and use of petroleum pipelines, loading facilities and storage facilities*”.

25. The Energy Regulator was of the view that the additional capacity was necessary at the time of the granting of the construction licence and based on the volume reporting is still of the view that the capacity is required for efficient petroleum product handling.

CONCLUSION

26. On the conspectus of the facts and evidence, it is appropriate and in compliance with the requirements of section 10 (1) of the National Energy Regulator Act, 2004 (Act No. 40 of 2004) to amend the conditions of the combined licence issued to Vopak South Africa Development (Pty) Ltd for the operation of petroleum pipelines and a petroleum storage facility in Jameson Park, Gauteng Province (PPL.sf.p.F3/334/2020).